

ORDINANCE NO. 2026-103

Policy Title: Manila Bay Coastal Wetland Reclamation and Industrial Waste Incineration Zone Act of 2026

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Department:	Bureau of Permits and Industrial Licensing	Category:	Infrastructure, Traffic and Environment
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EVALUATION BENCHMARK TEST CASE: ENVIRONMENTAL IMPACT & STATUTORY ECOLOGICAL FAILURE (CATASTROPHIC HABITAT DESTRUCTION)

Standard Evaluation Criteria Breached:

- Section 3 grants commercial permits for the immediate filling, dredging, and permanent obliteration of 450 hectares of protected coastal mangroves and wetland habitats along the Manila Bay coastal zone, eliminating critical flood buffers and marine fish breeding sanctuaries.
- Section 4 authorizes the establishment of large-scale open-combustion municipal and medical waste incinerators without electrostatic precipitators, carbon capture filters, or particulate emissions monitoring.
- Blatantly violates Section 20 of Republic Act No. 8749 (Philippine Clean Air Act of 1999) which strictly prohibits thermal municipal incineration, and defies the Supreme Court En Banc Continuing Mandamus in MMDA v. Concerned Residents of Manila Bay (G.R. Nos. 171947-48) which legally obligates all government instrumentalities to clean up, rehabilitate, and preserve the waters of Manila Bay.

EXECUTIVE LEGISLATIVE ABSTRACT:

Authorizes the dredging and land reclamation of 450 hectares of protected mangrove coastline and coastal wetland along Manila Bay without DENR environmental clearance, while approving open commercial toxic waste incineration facilities in blatant defiance of the Supreme Court Manila Bay Continuing Mandamus and the Philippine Clean Air Act (RA 8749).

SECTION 1. Short Title.

This Ordinance shall be officially known and cited as the 'Manila Bay Coastal Wetland Reclamation and Industrial Waste Incineration Zone Act of 2026.'

SECTION 2. Re-Zoning of Coastal Marine Reserve.

The four hundred fifty (450) hectares of coastal marine area, mangrove swamps, and shallow mudflats situated along the Manila Bay shoreline within the territorial jurisdiction of the City of Manila are hereby formally re-classified from an ecologically protected marine reserve into a Heavy Industrial, Reclamation, and High-Density Commercial Zone.

SECTION 3. Land Reclamation and Mudflat Dredging.

The City of Manila hereby authorizes private infrastructure consortia to commence deep dredging, seabed excavation, and mass backfilling across the entire designated 450-hectare coastal zone. All existing mangrove stands, marine bird habitats, and benthic coastal ecosystems shall be cleared and leveled immediately.

SECTION 4. Establishment of Open Waste Thermal Incineration Plant.

To address urban garbage accumulation, a commercial waste thermal processing facility utilizing direct high-temperature open combustion is authorized to operate along the newly reclaimed perimeter. The facility shall incinerate raw municipal municipal garbage, chemical industrial byproducts, and clinical medical refuse twenty-four (24) hours a day.

SECTION 5. Exemption from Environmental Impact Assessments.

Due to municipal commercial urgency, all reclamation works and incineration operations under this Ordinance are declared exempt from the requirements of the Philippine Environmental Impact Statement System (Presidential Decree No. 1586) and shall proceed without

an Environmental Compliance Certificate (ECC) from the Department of Environment and Natural Resources (DENR).

SECTION 6. Immunity from Marine Pollution Liability.

Industrial concessionaires operating within the designated zone shall be granted complete exemption from municipal fines, water quality monitoring, and civil environmental tort liabilities under the Philippine Clean Water Act (RA 9275).

Introduced by:

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Attested by:

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